Reconstruction Finance Corporation. (Executive Order 9440.)

§ 806.613 *Procurement of surplus property from disposal agencies.*

§ 806.613–1 *Surplus Property Act.* The Surplus Property Act of 1944 (Public Law 457, 78th Congress) places the responsibility upon all Government agencies, in order to avoid making purchases through commercial channels when suitable items are available from surplus property disposal agencies, to consult continuously the records of surplus property maintained by the disposal agencies under the regulations of the Surplus Property Board, and to determine whether their requirements can be satisfied out of such surplus property.

§ 806.613–2 *Disposal agencies.* (a) The disposal agencies and the general types of property for which they are responsible are as follows:

Reconstruction Finance Corporation—Capital and producers goods.
Department of Commerce—Consumers goods.
U. S. Maritime Commission—Ships and Maritime property.
War Food Administration—Food and related products.

A detailed statement of the specific kinds of property assigned to each of the foregoing disposal agencies is set forth in § 829.904.

(b) The surplus property operations of Reconstruction Finance Corporation within the United States are conducted through regional offices. The addresses of these regional offices and the areas that they serve are set forth in § 829.907.

(c) The surplus property operations of the Department of Commerce within the United States are likewise conducted through regional offices. The addresses of these regionall offices and the areas that they serve are set forth in § 829.908.

(d) The surplus property operations of U. S. Maritime Commission are conducted through a centralized office, the address of which is:

United States Maritime Commission, Attention: Mr: E. W. Gorman, Assistant to the Director of the Procurement Division, Washington 25, D. C.

(e) The surplus property operations of War Food Administration are likewise conducted through a centralized office, the address of which is:

Office of Distribution, War Food Administration, Washington 25, D. C.

§ 806.613–3 *Information as to available surpluses.* Information as to available surpluses may be obtained from the regional offices of Reconstruction Finance Corporation and of Department of Commerce, and from the Washington offices of U. S. Maritime Commission and War Food Administration. Although the regional offices of Reconstruction Finance Corporation and of the Department of Commerce maintain detailed inventories only for surplus property located within their respective geographical areas, they are prepared to furnish information as to the availability of specific items of property held by other regional offices, upon request. Both Reconstruction Finance Corporation and the Department of Commerce, periodically publish listings of available surplus property, and these lists may be obtained from any of the regional offices of these disposal agencies.

§ 806.613–4 *Establishment of operational liaison with disposal agencies.* (a) In order that the War Department may utilize the surplus property of other Government agencies to the fullest extent practicable, and effectively discharge its responsibilities under the Surplus Property Act as set forth in § 806.613–1, the Commanding General, Army Air Forces, will establish and maintain operational liaison between the procuring offices of Army Air Forces and the disposal agencies in such manner and at such levels as he shall deem most effective; and chiefs of technical services (other than Army Air Forces) will establish and maintain operational liaison with the disposal agencies, as follows:

(1) Each technical service that procures food or related products of the nature assigned to War Food Administration for disposal will establish operational liaison with the Washington office of that disposal agency. Operational liaison may be established at the level of the office of the chief of service or at the level of the district procurement office of the technical service, as the chief of service deems desirable.

(2) Each technical service that procures ships or maritime products of the nature assigned to U. S. Maritime Commission for disposal will establish operational liaison with the Washington office of that disposal agency. Operational liaison may be established at the level of the office of the chief of service or at the level of the district procurement offices of the technical service, as the chief of service deems advisable.

(3) Each technical service will establish operational liaison between each of its field procurement offices and the regional offices of Reconstruction Finance Corporation and the Department of Commerce, respectively for the region in which the field procurement office is located. In addition, operational liaison between the office of the chief of service and the Washington offices of Reconstruction Finance Corporation and the Department of Commerce, may be established if the chief of service deems such operational liaison desirable.

(b) Each liaison officer shall be the focal point for the exchange of information with the disposal agencies as to contemplated Army procurements and as to the availability of surplus property to satisfy such procurements. The duties of each liaison officer shall be to review continuously the lists of surplus property published by the various disposal agencies; to be informed currently as to the items being procured by his respective procurement district office or technical service; to furnish information to the disposal agencies concerning items under procurement; to ascertain from the disposal agencies whether or not suitable items are available from surplus stock; and to transmit such information concerning available items to the proper procurement officer. All such reviews of surplus property lists and such exchanges of information as to procurements and available surplus property shall be made promptly and expeditiously so as not to delay procurement.

§ 806.613–5 *Procedure for acquiring surplus property.* In general, surplus property will be transferred with reimbursement by the War Department at a fair valuation determined by the disposal agency. Details of transfer procedure may be ascertained from the offices of the disposal agencies. See § 806.614 as to the appropriate form of delivery order to be used in acquiring surplus property from disposal agencies. However, where the property being transferred was declared surplus by another element of the War Department or by the Navy Department, non-reimbursable transfer can be arranged wherever permitted by Special Order No. 6 of the Surplus Property Board, dated May 1, 1945.

§ 806.613–6 *Direct communication with disposal agencies authorized.* Direct communication with disposal agencies is authorized in all matters pertaining to the acquisition of surplus property.

§ 806.613–7 *Readjustment Division.* Although direct communication with disposal agencies is authorized, Readjustment Division, Headquarters, Army Service Forces, is available for assistance in establishing operational liaison with the disposal agencies, and for consultation when the technical services desire assistance in their negotiations for acquisition of surplus property from the disposal agencies. All policy matters pertaining to the acquisition of surplus property from disposal agencies will be cleared with Readjustment Division, Headquarters, Army Service Forces (Section II, Circular 199, W.D. 1944).

§ 806.613–8 *Disposition of property to other Government agencies.* It is to be noted that this § 806.613 relates only to the acquisition of surplus property from the disposal agencies, and not to the reporting of surplus War Department property to the disposal agencies or to disposition of War Department property to other Government agencies. As to the latter, see Parts 821 to 829.

§ 806.614 *Form of delivery order to be used in making interdepartmental or interbranch purchases.* (a) Delivery orders are used to place orders:

(1) Under already existing contracts executed by other technical services or other departments of the Government (see §§ 806.605a, 806.606, 806.607 and 806.609) and

(2) With other departments of the Government furnishing particular services or supplies (see §§ 806.606a, 806.606b, 806.608, 806.610, 806.612 and 806.613).

(b) The term "delivery orders" is used in the procurement regulations to refer to orders of the character described in paragraph (a) above. Although orders placed under General Schedules of Supplies contract sometimes are referred to as "purchase orders", the term "delivery orders" is more accurate, since a binding contract already exists between the Government and the contractor.

(c) The following forms of delivery order may be used in making interbranch or interdepartmental purchases:

(1) W. D. Contract Form No. 383 (§ 813.1317a), [In certain cases, TM 38–403 (Station Supply Procedure) and ASF